HOW A JUDGE IS IMPEACHED

In India, a judge of the Supreme Court or a high court can be removed through impeachment, which involves a specific process outlined in the Constitution and the Judges (Inquiry) Act, 1968. Here's a breakdown of the process:



1 INITIATION: A motion for impeachment can be initiated in either the Lok Sabha (at least 100 members must sign) or the Rajya Sabha (at least 50 members must sign). In case of Justice Varma, the motion has already been admitted in Parliament

2 INVESTIGATION: The presiding officer (speaker of the Lok Sabha or chairman of Rajya Sabha) can refer the motion to a three-member committee for investigation. This committee typically includes the Chief Justice of India or a Supreme Court judge, a High Court Chief Justice, and a distinguished jurist. In case of Justice Varma, the Supreme Court's three-member inquiry committee has already recommended his impeachment. There is no clarity if Parliament will go by this recommendation or form a committee of its own to probe the allegations against Justice Varma

3 PARLIAMENTARY APPROVAL: If the committee finds the judge guilty, the report is presented to the respective House. For the motion to be successful, it must be passed by a special majority (two-thirds of those present and voting, and a majority of the total membership) in both the Lok Sabha and Rajya Sabha. The monsoon session of Parliament is likely to see debate and voting on Justice Varma's impeachment.

THE PARLIAMENT'S MONSOON SESSION IS LIKELY TO SEE DEBATE AND VOTING ON JUSTICE VARMA'S IMPEACHMENT

4 PRESIDENTIAL ORDER: If both Houses pass the motion with the required majority, it is sent to the President, who then issues an order for the judge's removal

come tomorrow's tool for removing inconvenient ones.

Justice Varma himself represents a puzzling target. Colleagues describe him as brilliant, particularly in tax law. No whispers of impropriety marked his career. His judgments have reflected careful reasoning rather than ideological bias. Meanwhile, the fundamental mysteries remain unresolved. Whose money was burning that night? How did it arrive in a locked storeroom? The fire's cause stays unexplained. The judge mentioned an explosion while fire officers doubted the short-circuit theory. Yet no forensic examination occurred. The missing CCTV footage that might have shown who accessed the storeroom has also vanished.

These gaps matter because they transform what should be a search for truth into an exercise in presumption. The committee's logic that Varma must be guilty because he couldn't prove his innocence, inverts fundamental principles of justice. As Sibal observed, "Under which principle of criminal law can you find somebody guilty on a presumption?"

Justice Yashwant Varma will likely enter history as India's first successfully impeached judge. But his removal may prove a pyrrhic victory for those seeking judicial accountability. Also, more fundamental questions of systemic judicial corruption remain unanswered. The case underscores the urgent need for structural judicial reforms that eliminate the possibility of unaccounted cash lying hidden in a judge's storehouse. ■